UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. DIANA CANDELARIA, et al., Defendants.	Case No. 26-cv-08272-RFL **ORDER GRANTING MOTION TO STRIKE** Re: Dkt. No. 17

Plaintiff Brendan Ngwa Nforbi, who is representing himself in this action, filed his initial Complaint on August 10, 2026. (*See* Dkt. No. 1.) On August 14, Nforbi filed an amended complaint, which Nforbi says was filed in error. (*See* Dkt. Nos. 5, 10.) On August 17, Nforbi filed the correct First Amended Complaint.[1] (*See* Dkt. Nos. 6, 10.) Nforbi has filed a certificate showing service of the First Amended Complaint on Defendants Diana Candelaria and Steve Gordon on August 21, 2026, by mail. (Dkt. No. 9.) Defendants filed an Answer on September 4, which addresses only the initial Complaint, and not the First Amended Complaint. (Dkt. No. 11.) On September 9, Nforbi moved to strike the Answer for improperly addressing the wrong complaint. (Dkt. No. 17.) Defendants have not filed an opposition, which was due September 23, 2026.

Under the Federal Rules of Civil Procedure, a plaintiff may amend their complaint once as a matter of course within "21 days after service of a responsive pleading or 21 days after

[1] Defendants have not objected to this filing. In light of this, and because Nforbi is proceeding without representation and has stated that the correct First Amended Complaint was the August 17 filing (Dkt. No. 6), the Court construes the August 14 filing (Dkt. No. 5) to be the result of technical error and orders it stricken from the docket.

service of a motion under Rule 12(b), (e), or (f)." Fed. R. Civ. P. 15(a)(1)(B). Nforbi filed the First Amended Complaint within this timeframe, meaning the First Amended Complaint became the operative complaint upon filing. Since Defendants answered only the superseded original Complaint and did not address the operative First Amended Complaint, the Motion to Strike is **GRANTED**. Defendants are ordered to file a response to the First Amended Complaint by October 27, 2026.

IT IS SO ORDERED.

Dated: October 13, 2026

RITA F. LIN
United States District Judge